

ASCII MASTER FLOW – PANEL 1/12: From absent list to Part IVA and eleven citizen duties

ORIGINAL CONSTITUTION

- +-- enforceable rights in Part III
- +-- State duties in Part IV
- +-- no separate constitutional list of citizen duties

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1976 SWARAN SINGH COMMITTEE

- +-- recommended a separate chapter and eight duties
- +-- penalties and tax duty were among proposals not fully enacted

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42ND AMENDMENT, 1976

- +-- inserted PART IVA and ARTICLE 51A
- +-- enacted ten duties, clauses (a) to (j)

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86TH AMENDMENT, 2002

- +-- inserted clause (k): education opportunity for child / ward, age 6-14

USSR is the conventional source influence; Indian duties remain rights-bounded.

MUST REMEMBER: Part IVA contains the exact eleven duties in Article 51A: ten inserted by the 42nd Amendment in 1976 and clause (k) by the 86th Amendment in 2002; the Swaran Singh Committee recommended eight, not the enacted ten.

ASCII MASTER FLOW – PANEL 2/12: The eleven duties grouped for exact recall

CONSTITUTIONAL LOYALTY AND NATION

- +-- (a) Constitution, ideals, institutions, Flag and Anthem
- +-- (b) freedom-struggle ideals
- +-- (c) sovereignty, unity and integrity
- +-- (d) defend country and render national service when called

SOCIAL AND CULTURAL CITIZENSHIP

- +-- (e) harmony and brotherhood; renounce practices derogatory to women
- +-- (f) value and preserve the rich heritage of composite culture

ECOLOGICAL AND RATIONAL CITIZENSHIP

- +-- (g) environment and compassion for living creatures
- +-- (h) scientific temper, humanism, inquiry and reform

PUBLIC ETHIC AND CAPABILITY

- +-- (i) safeguard public property; abjure violence
- +-- (j) strive for individual and collective excellence
- +-- (k) education opportunity for child / ward aged six to fourteen

ASCII MASTER FLOW – PANEL 3/12: Legal character: constitutional duty mediated by enforceable law

ARTICLE 51A APPLIES TO EVERY CITIZEN

- +-- not directly to foreigners
- +-- several clauses need legislation or institutional support

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NON-JUSTICIABLE

- +-- no writ merely to compel abstract performance
- +-- no automatic penalty from Article 51A alone

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LEGAL MEDIATION

- +-- legislatures enact valid laws within competence
- +-- the executive implements law and civic education
- +-- courts use duty values in interpretation where relevant
- +-- implementing laws remain subject to rights and judicial review

moral and civic norm -> education + valid law + institutions -> enforceable obligation

TRAP: no separate statute exists for every duty.

ASCII MASTER FLOW – PANEL 4/12: Rights, duties and DPSP: three constitutional directions

PART III: RIGHTS

+-- protected claims, autonomy and enforceable remedies

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+---- CONSTITUTIONAL BALANCE ----+

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PART IVA: DUTIES

PART IV: DIRECTIVES

+-- citizen responsibility

+-- State welfare purpose

+-- non-justiciable text

+-- non-justiciable programme

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+----- DEMOCRATIC RECIPROCITY -----+

rights protect responsible agency

-> duties sustain civic conditions

-> DPSP directs public power toward justice

LIMIT: duty cannot erase a right; right does not immunise violence or illegality.

ASCII MASTER FLOW – PANEL 5/12: Patriotism and symbols: respect without compelled conformity

ARTICLE 51A(a): RESPECT CONSTITUTION, INSTITUTIONS, FLAG AND ANTHEM

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BIJOE EMMANUEL (1986)

+-- respectful standing without singing was protected

+-- genuine conscience defeated compelled conformity

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NAVEEN JINDAL (2004)

+-- respectful Flag display falls within Article 19(1)(a)

+-- use remains subject to valid statutory restrictions

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SHYAM NARAYAN CHOUKSEY (2018)

+-- 2016 cinema direction was interim

+-- 9 January 2018 final order: cinema playing optional / directory

VERDICT: protect republican symbols without reducing patriotism to one performance.

ASCII MASTER FLOW – PANEL 6/12: Citizenship domains and the education triad

CLAUSE	DOMAIN	OPERATIVE DISTINCTION
51A(e)	harmony + dignity	includes renouncing practices derogatory to women
51A(f)	composite culture	plural inheritance, not one frozen culture
51A(g)	environment + animals	works with Article 48A, Article 21 and statutes
51A(h)	reason and reform	inquiry, not State-defined orthodoxy
51A(i)	property + non-violence	peaceful protest remains protected
51A(j)	excellence	aspiration, not automatic rank or admission right
51A(k)	child education	parent / guardian duty for ages six to fourteen

EDUCATION TRIAD

Article 21A -> State-guaranteed right, ages 6-14

Article 45 -> early-childhood care and education below six

51A(k) -> parent / guardian duty, ages 6-14

2023 Jallikattu ruling qualifies the stronger 2014 animal-welfare reading.

CLOSE DISTINCTION: Fundamental Duties bind citizens, are non-justiciable and create no automatic offence. Legal consequences arise only through valid statutes, while courts may use duties as interpretive context subject to Fundamental Rights.

ASCII MASTER FLOW – PANEL 7/12: Verma Committee and the existing-law implementation web

J.S. VERMA COMMITTEE, 1999

- +-- preferred education, awareness and enforcement of existing laws
- +-- did not assume that every duty needs a separate penal statute
- +-- proposed sensitisation and Fundamental Duties Day, 3 January

EXISTING-LAW WEB: ILLUSTRATIVE, NOT ONE-TO-ONE

- +-- National Honour Act / Flag law -> clause (a)
- +-- UAPA, election and criminal-law fields -> sovereignty and harmony
- +-- civil-rights and atrocity laws -> dignity and fraternity
- +-- environment, wildlife and forest laws -> clause (g)
- +-- Public Property Act -> clause (i)
- +-- Right to Education Act -> clause (k)

CONTROL: valid statute defines offence and penalty; Article 51A supplies context.

ASCII MASTER FLOW – PANEL 8/12: Criticism, enforceability debate and proportionate reform

CRITICISM

vague terms
non-justiciability
Emergency-era insertion
citizens-only reach
selective moral policing
no duty to vote / pay tax

RESPONSE / REFORM

teach meaning through civic education
enforce valid laws, not abstract commands
ground duties in democratic constitutionalism
use ordinary law for institutions and foreigners
require legality, proportionality and equality
do not read rejected proposals into the text

REFORM LADDER

- 1 constitutional literacy and public education
- 2 map gaps in existing laws and implementation
- 3 prefer civil / administrative measures where adequate
- 4 legislate narrowly for demonstrable harm
- 5 preserve rights, federal competence and judicial review

VERDICT: strengthen civic capacity before creating an omnibus penal code.

ASCII MASTER FLOW – PANEL 9/12: Current legal status and evidence control

CURRENT STATUS – CHECK BEFORE THE EXAM

- +-- Durga Dutt v Union of India, W.P.(C) 67/2022: pending on 28 August 2026
- +-- written order, 11 September 2024: enactment synopsis sought; matter relisted
- +-- oral hearing observations are not a final ratio

OPERATIVE STATUTORY CONTROLS

- +-- National Honour Act, 1971: defined symbol/Anthem offences
- +-- BNS 196/197: harmony and national-integration fields
- +-- RTE Act, 2009 section 10: parent/guardian admission duty
- +-- Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980: current short title

EVIDENCE RULE

Constitutional duty supplies context; the statute supplies elements, process and sanction.

ASCII MASTER FLOW – PANEL 10/12: Prelims traps and verified PYQ routes

PRELIMS CONTROL

Part IVA -> Article 51A only	citizens only; non-justiciable text
42nd -> ten duties	86th -> clause (k), total eleven
Swaran Singh -> eight recommended	tax duty / blanket penalties not enacted
51A(g) citizen duty	48A State directive
21A right / 45 below-six DPSP	51A(k) parent duty, ages 6-14

VERIFIED PYQ STATUS

- +-- no direct routed PYQ found in the maintained 2018-2025 ledgers
- +-- 2020 Q8 and 2025 Q55 are supporting questions owned by Polity 08
- +-- 2025 local official Set-A key = C
- +-- 2020 answer remains explicitly inferred

TRAP: never manufacture a direct Mains PYQ from a coaching practice question.

ASCII MASTER FLOW – PANEL 11/12: Executable 10, 15 and 20-mark answer routes

10 MARKS / 150 WORDS

Part IVA status -> amendment origin -> two legal effects -> one rights limit -> verdict

15 MARKS / 250 WORDS

exact duty / issue -> statute or case mechanism -> criticism -> graded reform

20 MARKS / 300 WORDS

thesis -> rights-DPSP-duty architecture -> grouped clauses -> evidence

-> coercion counter-case -> proportionate implementation -> qualified conclusion

EXECUTION CHECK

+-- exact Article / amendment / case status

+-- claim -> named evidence -> analysis -> qualification

+-- increase dimensions with marks; do not lengthen generic prose

FINAL LINE

Responsible citizenship gains legal effect through precise, rights-compatible institutions.

ASCII MASTER FLOW – PANEL 12/12: Current legal-status firewall: duty is not automatic liability

ARTICLE 51A -> constitutional duty, citizens only, non-justiciable

NATIONAL HONOUR ACT / BNS / RTE / ENVIRONMENT LAWS -> separate statutory elements

DURGA DUTT ORDER, 11 SEP 2024 -> synopsis requested; no final enforceability holding

ORAL OBSERVATION != RATIO | MORAL DUTY != OFFENCE | DUTY != UNLIMITED RESTRICTION

VERDICT: operationalise through precise law, civic education and rights-compatible review.

LEGAL/SOURCE LIMIT: Durga Dutt remains a pending proceeding on the located official record;

its 11 September 2024 order sought a legislative synopsis and did not make duties

justiciable or convert reported oral observations into ratio.